

Aeria Policy Document

1. Document Control / Header Information

Title

HSE Refuse Unsafe Work Policy

Document Number / Code

HSE1034

Version / Revision Number

V25_01

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Sep 18, 2025

Review Date

Feb 1, 2026

Prepared By

[Dustin Wales](#)

Approved By

[Dustin Wales](#)

Amendment / Revision History

Date	Description of Change	Approved By
Sep 18, 2025	Initial release of the new document style	Dustin Wales
Date	[Description of change]	Person
Date	[Description of change]	Person

2. Purpose & Scope

Purpose

This policy exists to empower workers at Aeria Solutions Ltd. to refuse unsafe work without fear of reprisal, ensuring a safe workplace. Its objectives include protecting workers from hazards, complying with legal rights, and addressing the challenge of unrecognized or uncontrolled workplace risks.

Scope

This policy applies to all employees of Aeria Solutions Ltd., covering all work sites, tasks, and activities where safety concerns may arise.

3. Definitions & References

Definitions

- **Refusal of Unsafe Work:** The legal right of a worker to refuse a task they believe poses an imminent danger to their health or safety.
- **Imminent Danger:** A condition or practice that could cause immediate serious injury or death.



- Retaliation: Any adverse action taken against a worker for exercising their right to refuse unsafe work.

References

- BC Workers Compensation Act (Part 3, Division 4 - Right to Refuse Unsafe Work).
- BC Occupational Health and Safety Regulation (Section 3.12 - Refusal of Unsafe Work).
- Aeria Solutions Ltd. Health & Safety Policy.
- WorkSafeBC Guidelines on Worker Rights.

4. Policy Statement

Aeria Solutions Ltd. recognizes and supports the right of all employees to refuse unsafe work when they have reasonable cause to believe it poses an imminent danger. We are committed to investigating refusals promptly, ensuring no retaliation, and implementing corrective measures to maintain a safe working environment.

5. Procedures

Step-by-Step Actions

- Initial Refusal: Worker notifies their supervisor of the unsafe condition and refuses the task.
- Immediate Assessment: Supervisor assesses the situation and consults with the worker.
- Investigation Process: HSE Representative investigates the reported hazard with worker input.
- Resolution Action: Implement corrective measures or confirm work can resume safely.
- Documentation Update: Record the refusal, investigation, and resolution in company records.

Roles & Responsibilities for Each Step

- Initial Refusal: Worker.





- Immediate Assessment: Supervisor.
- Investigation Process: HSE Representative and supervisor.
- Resolution Action: HSE team and management.
- Documentation Update: HSE Representative and HR.

Tools, Forms, or Checklists to be Used

- Refusal report form
- Hazard assessment checklist (e.g., FLRA/FLHA)
- Investigation log
- Resolution record

Safety/Compliance/Quality Requirements

Adherence to BC Workers Compensation Act Part 3 and OHS Regulation Section 3.12, ensuring thorough investigation and no retaliation.

Reporting or Escalation Processes

Worker reports refusal to supervisor; escalate unresolved issues to HSE Representatives or WorkSafeBC within 24 hours if necessary.

6. Roles & Responsibilities

- **Management** : Ensure policy awareness, provide resources for investigations, and protect against retaliation.
- **Supervisors** : Receive refusals, conduct initial assessments, and escalate to HSE as needed.
- **Staff** : Exercise their right to refuse unsafe work, provide details to support their concern, and cooperate with investigations.

7. Monitoring, Compliance & Enforcement

- **How Compliance Will Be Monitored** : Through monthly reviews of refusal reports, training records, and worker feedback to ensure policy adherence.



- **Consequences for Non -Compliance** : Disciplinary action against supervisors or management for retaliation, with retraining mandated for policy breaches.
- **Reporting Obligations** : All refusals and investigation outcomes must be reported to HSE Representatives within 24 hours.

8. Sign-Off & Acknowledgment

Approval Sign-Off

Role	Name	Signature	Date
Author	Dustin Wales		Sep 18, 2025
Reviewer	Person		Date
Approver	Person		Date

Employee Acknowledgment Section

I, Person, acknowledge that I have read, understood, and agree to abide by the terms and conditions outlined in this Policy & Procedure document.

Date: Date

